

23VECV02364 23VECV02364

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Tentative Ruling

Vista Land Properties v. TI

Industry Corporation, Case no. 23VECV02364

Hearing date July 2, 2026

Plaintiff

Vista Land's Motion for Leave to File First Amended Complaint

Plaintiff

Vista Land Properties LLC sues defendants TI Industry Corporation, 33 Valley, LLC and others for contractual fraud arising out of a real property development agreement. Plaintiff moves for leave to file a first amended complaint, to add new parties and causes of action. Defendants TI Industry, T. and E. Itskovich filed an untimely opposition on 6/15/26; the court continued the hearing to allow for a reply. See 6/16/26 Min. Order.

Per

Code Civ. Proc. §473(a)(1) "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading."

Code Civ. Proc. §576 provides that "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." Per California Rules of Court rule 3.1324(a), a party seeking leave to amend must include: (1) the proposed amendment or amended pleading; (2) a statement identifying the allegations in the original pleading to be deleted; and (3) a statement identifying the allegations to be added.

Plaintiff

seeks leave to add: (1) new defendants, the project design professionals and funds control servicers; (2) six causes of action; and (3) new supporting allegations. See Decl. Mass, exh. 2. Plaintiff argues these new defendants, causes of action and allegations ought to have been included previously and were discovered after current counsel substituted into the case. Id. at para. 3.

Plaintiff

argues this motion is timely, as counsel substituted into the case March 2026 and undertook the case review which led to the proposed amendments. Decl. Mass, paras. 2-3. Counsel consulted with forensic design professionals, which had not been done previously, leading to the attempt to name additional defendants. Id. at paras. 22-25. Plaintiff argues the new causes of action against current defendants arise from the same operative facts so do not expand the scope of discovery or prejudice current defendants. Plaintiff argues that, as no trial has been set, there is no prejudice. Id. at para. 30.

Defendants

argue the proposed amendment is untimely, as facts giving rise to the proposed amendment have been in plaintiff's possession since plaintiff completed destructive testing in 2021. See Decl. Frederick, paras. 5-11. Defendants argue new counsel substituting into the case does not constitute new facts, just a different legal strategy.

Defendants

further argue addition of new defendants is time-barred. "The straightforward rule is that amendment after the statute of limitations has run will not be permitted where the result is the addition of a party who, up to the time of the proposed amendment, was neither a named nor a fictitiously designated party to the proceeding." *Ingram v. Superior Court* (1979) 98 Cal.App.3d 483, 492. Defendants argue the identity and descriptions of the proposed new defendants have been known to plaintiff since 2021, so attempts to add them now is time-barred. See *Thompson v. Palmer Corp.* (1956) 138 Cal.App.2d 387, 390.

Plaintiff

admits the proposed amendments are not based on new information, but on new counsel's case review. See Reply, 2:10-15. Even if a good amendment is

proposed in proper form, unwarranted delay may be a basis for denial. *California Concrete Co. v. Beverly Hills Savings & Loan Ass'n.* (1989) 215 Cal.App.3d 260, 272.

However,

the burden is on defendants to identify actual prejudice, not mere allegations that further discovery will be necessary. *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 297. Defendants fail to identify new witnesses, written discovery or destructive testing that would need to occur regarding proposed new claims against current defendants. Further, to the extent that adding new defendants is untimely and time-barred, such argument is to be raised by those new defendants, not by current defendants.

Had

the proposed amendment necessitated further discovery, or if trial were approaching, prejudice might have been established such that leave to amend should be denied. *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486–488. As no need for discovery has been shown, and trial is not set, there is no actual prejudice, and it would be an abuse of discretion to deny leave to amend. GRANTED; the court will discuss scheduling with the parties at hearing.